

#	Case Name	Tentative
		<i>Richmond</i> (1995) 35 Cal.App.4th 1070, 1086.) No California reported decisions have ever found that an accountant and client engagement creates a fiduciary relationship. "The creation of a fiduciary obligation or duty must, at a minimum, arise from facts demonstrating the formation of a confidential relationship." (<i>Richard B.. LeVine, Inc. v. Higashi</i> (2005) 131 Cal.App.4th 566, 586.) "A fiduciary relationship is created where a person reposes trust and confidence in another and the person in whom such confidence is reposed obtains control over the other person's affairs." (Ibid.) "The mere placing of a trust in another person does not create a fiduciary relationship." (Ibid.) Further, "an agreement to communicate one's knowledge, exercising his special knowledge and skill in the area of learning concerned, does not create a trust but only a contractual obligation." (Ibid.) The FAC alleges Plaintiffs entered into an agreement with Defendant Chandel for him to serve as outsourced CFO for Plaintiff Elite pursuant to which Defendant Chandel was to perform bookkeeping, accounting, financial planning and tax preparation services, perform advisory and supervisory services, perform management and oversight services on behalf of Plaintiff Elite, and provide consulting and advisory services to all Plaintiffs in strategic business, tax and estate planning. (FAC, ¶ 62.) "The agreement obligated Defendants Chandel and/or Focus to prepare [sic] perform all of the services described herein (1) correctly, and (2) with the skill and care of a certified public accountant." (FAC, ¶ 63.) As alleged by Plaintiffs in the FAC, such agreement created nothing more than an obligation by Defendants to exercise their skill and special knowledge. This is insufficient to establish that Defendants were acting as fiduciaries with respect to the accounting services it provided to Plaintiffs. Accordingly, the demurrer to the fourth cause of action is SUSTAINED. Plaintiffs have 10 days leave to amend the FAC. The case management conference is continued to February 22, 2027 at 9:00 a.m. Defendants shall give notice of this ruling.
54.	Gonzalez v. General Motors LLC	Plaintiff Salvador Gonzalez's Motion for Attorney fees is GRANTED. Defendant General Motors, LLC shall pay <u>\$17,385.00</u> in reasonable attorney fees and <u>\$721.24</u> in costs and expenses

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2025-01485324	to Plaintiff. (See Code Civ. Proc., §1033.5, subd. (a)(10)(B) [statutory attorney fees]; Civ. Code §1794, subd. (d) [Song-Beverly attorney fees]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 [lodestar; trial court’s discretion]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same]; Reza Decl. ¶¶ 4-15[description of services performed]; 21-30 [justification for hourly rates sought], 37-39 [timekeeping procedures]; and Ex. C [timekeeping records].) The attorney fee award consists of the reasonably expended hours of work (including 2.5 hours spent preparing the reply brief and an additional 0.5 hours to prepare for the hearing) at the reasonable hourly rates sought by the following timekeepers: <table><tr><th>Timekeeper</th><th>Role</th><th>Rate</th><th>Hours</th><th>Total</th></tr><tr><td>Ashkan Reza</td><td>Attorney</td><td>\$625</td><td>13</td><td>\$8,125.00</td></tr><tr><td>Lauren Warwick</td><td>Attorney</td><td>\$425</td><td>20</td><td>\$8,500.00</td></tr><tr><td>Michelle Nguyen</td><td>“Case Manager”</td><td>\$95</td><td>2.1</td><td>\$199.50</td></tr><tr><td>Dianne Martin</td><td>“Case Manager”</td><td>\$95</td><td>4.8</td><td>\$456.00</td></tr><tr><td>Adriana Hernandez</td><td>Legal Support</td><td>\$95</td><td>0.5</td><td>\$47.50</td></tr><tr><td>Mailei Bennett</td><td>Paralegal</td><td>\$95</td><td>0.4</td><td>\$38.00</td></tr><tr><td>Chris Coyoc</td><td>“Case Manager”</td><td>\$95</td><td>0.2</td><td>\$19.00</td></tr><tr><td></td><td></td><td></td><td>41.0</td><td>\$17,385.00</td></tr></table> Plaintiff has adequately established a basis for the reasonableness of the hourly fees requested for the attorney timekeepers by providing evidence of each timekeeper’s experience and qualifications and reference to rates charged by other lemon law attorneys in the Orange County market. Plaintiffs have sufficiently established that the requested hourly rates of counsel are reasonable and commensurate with what other similarly tenured and experienced attorneys could charge in the Orange County market. Plaintiff has not provided sufficient facts that justify the proposed hourly rates for the support team that participated in this case. The Court	Timekeeper	Role	Rate	Hours	Total	Ashkan Reza	Attorney	\$625	13	\$8,125.00	Lauren Warwick	Attorney	\$425	20	\$8,500.00	Michelle Nguyen	“Case Manager”	\$95	2.1	\$199.50	Dianne Martin	“Case Manager”	\$95	4.8	\$456.00	Adriana Hernandez	Legal Support	\$95	0.5	\$47.50	Mailei Bennett	Paralegal	\$95	0.4	\$38.00	Chris Coyoc	“Case Manager”	\$95	0.2	\$19.00				41.0	\$17,385.00
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		reduces the hourly rate for each support timekeeper to \$95/hour which the court finds to be commensurate with a reasonable hourly rate for litigation support work in this market for this type of matter. The Court credits the accuracy of Moving Party's time records. (See <i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751, 784-785.) However, the Court finds that the records include duplicative and non-compensable billing, and has reduced the hours to reflect that fact. The fee award has been reduced to reflect the number of hours reasonably spent to complete the tasks involved in this lawsuit, where no motion practice, pleadings challenges, depositions, or substantive court hearings were required. (See <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816 [no abuse of discretion where trial court reduced fee award to account for duplicative and unnecessary billing].) The Court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel's skill and contingency risk are reflected in the reasonable hourly rates described above. Plaintiff's memorandum of costs seeks recovery of reasonable and necessary costs and the full request of \$721.24 is GRANTED. The Court orders this case dismissed without prejudice with the Court retaining jurisdiction to enforce the terms of the settlement. Plaintiff shall give notice of this ruling.
55.	Jones v. Myers 2026-01542899	Plaintiff Desiree Jones' motion to quash the "wrongful Abstract of Judgment recorded by Defendant on or about May 6, 2026, with the Orange County Recorder's Office" is DENIED. A motion to expunge an abstract of judgment will not be granted on the ground that the judgment debtor currently owns no real property, because the lien validly attaches to after-acquired property interests and the absence of current property ownership is not a recognized basis for expungement of an otherwise proper abstract. (See Ca. Civ. Pro. Section 697.340(b) ("If any interest in real property in the county on which a judgment lien could be created under subdivision (a) is acquired after the judgment lien was created, the judgment lien attaches to such interest at the time it is acquired."); <i>O'Neil-Rosales v. Citibank (South Dakota)</i> (2017) 11 Cal.App.5th Supp.1, 8 ("Assuming plaintiff was correct and